SENATOR DAVID POCOCK
Senator for the ACT

Mr Jerome Laxale MP
Chair of Joint Standing Committee on Electoral Matters
Parliament House
Canberra ACT 2600

Dear Chair,

Thank you for the opportunity to make a submission to this inquiry.

As a Senator from the Australian Capital Territory, I serve three-year terms and had to stand for re-election again in 2025. I would like to take the opportunity to publicly thank the Australian Electoral Commission (AEC) for the professional way the election was conducted. We are fortunate to have a respected, independent electoral commission to run our elections.

Specifically, I would like to congratulate Mr Timothy Robertson, the Australian Electoral Officer for the ACT, and his team on a successful federal election here in the ACT.

Thanks to the AEC, the 2025 election ran smoothly within the existing rules and system in place. That doesn't mean that those rules and systems are perfect and that we shouldn't take the opportunity after each election to consider whether they promote the most transparent, fair system that provides as near a level playing field as possible for all participants and best serves democracy in our country.

The comments below not only reflect my experience running for a second time for office, but also the experience of the team of volunteers that supported me during the campaign, many of whom have contributed their thoughts and opinions to the development of this submission. I am proud of the ongoing commitment and engagement of Team Pocock volunteers in engaging in processes like these and their desire to see politics done differently, with people once again at the centre of the system. Our submission identifies areas where we think the rules can be improved and we can develop a fairer, more representative system for all.

Comments on Electoral Legislation Amendment (Electoral Reform) Act 2025

Recommendations:

- **Retain features of the Act that increase transparency – lower disclosure thresholds and real-time reporting – and expand the definition of 'gift' to include all money received by political parties closing loopholes that currently allow cash received for events, memberships and various other means to avoid disclosure requirements**
- **Pause the introduction of current donation and expenditure caps, and changes to the public funding of elections, until full transparency measures noted above have been in place for at least one election so that a better understanding of the full donation landscape is understood, and the potential impacts can be evaluated**

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- **Hold a full parliamentary enquiry in the 49th Parliament through a select committee, not controlled by the government, to consider the impacts of the transparency reforms, using donation data from the next election to amend the legislation to make it fairer to independents and micro-parties, better reflecting the desire of Australian voters**

Transparency measures

I am strongly in favour of increasing transparency around political donations, allowing members of the public to access information about who is funding parties and campaigns in as close to real time as possible. I commend the Joint Standing Committee for the transparency measures contained in its report on the 2022 election.

But more can be done. The definition of 'gifts' in the Commonwealth Electoral Act allows parties to receive money from private individuals, companies and other entities that are not required to be disclosed in their annual returns. Examples of this includes ticket prices to fundraising events that are valued greatly in excess of the value provided, and membership fees to business or other clubs and groups related to the party. As Anthony Whealy QC, the Chair of the Centre for Public Integrity notes, 'The federal disclosure scheme is misnamed — it is a non-disclosure scheme with more than a third of political funding shrouded in secrecy.'

I am strongly in favour of political party annual returns disclosing all cash received in excess of the disclosure threshold, no matter the purpose of the receipt.

Donation caps

The donation caps contained in the current legislation are blatantly skewed to favour major parties over smaller parties and independent candidates. This is not how democracy in Australia is supposed to work. More than 1 in 3 votes cast in the 2025 election were for someone other than a representative of the two major parties. Australians are tired of politics as usual, yet the donation caps are designed with only one purpose – entrench the power of the two major parties.

Donation caps greatly disadvantage non-incumbents. Donations are notionally capped at $20,000 per year per donor. Donation caps are based on calendar years and reset after an election, which means that four times the $20,000 donation cap can be made to a candidate over an election cycle. Challenger candidates, who often only decide to run within one year of the election, are limited to the annual donation cap per donor of $20,000, while incumbents may receive up to $80,000 from a donor between elections.

There are also huge loopholes for parties. The $20,000 donation cap is applied per recipient, where candidates and their party in that state are considered a single recipient. But a donor can donate $20,000 to each state branch of a political party or a nominated entity up to a maximum of $100,000 per state per year or $640,000 nationally per year. For example, the Liberal Party and National Party combined have 13 state branches and the Federal parties, so an individual donor can still contribute over $1 million per election to the Coalition. In other words, an independent candidate can receive a maximum of $20,000 per year and major parties with multiple branches and nominated entities can receive significantly more through multiple channels.

Nominated entities are perhaps the most egregious example of the legislation being designed to prevent independent candidates from competing against major parties. Nominated entities are

effectively investment vehicles with millions of dollars in assets accumulated over the years that are controlled by the parties. Donations from nominated entities are exempt from the donation caps. But donations to the nominated entities will be subject to the donation caps meaning that unless an independent or minor party has a billionaire benefactor who can establish a nominate entity before 1 July 2026, no other party or person will be able to benefit from uncapped donations from a nominated entity.

Expenditure caps

The expenditure caps contained in the current legislation are blatantly skewed to favour major parties and to the disadvantage of smaller parties and independent candidates. I will repeat what I said above - this is not how democracy in Australia is supposed to work. More than 1 in 3 votes cast in the 2025 election were for someone other than a representative of the two major parties. The electorate is tired of politics as usual, yet these laws are designed with only one purpose – entrench the power of the two major parties.

There are a large number of loopholes in the legislation that give parties huge advantages over independent candidates and micro-parties. As a Senate candidate, I needed to form a party to be able to get my name and party logo above the line on the ballot paper.

There is no justification for this; for me to be able to increase spending on my campaign by manipulating the system. This is what the major parties are able to do on a national scale.

The ability of parties to split costs across electorates, and between senate races, means that a major party can legally spend millions of dollars on a single seat. All of the independents expenditure counts towards the $800,000 single electorate cap.

The expenditure caps are grossly skewed to favour the major parties. They are not intended to take money out of politics or level the playing field. They have one aim only, to entrench the power of two major parties.

Public funding

Money received on a per-vote basis by candidates who received more than 4 per cent of the vote at an election is received after the election. Often parties are able to take out commercial loans on the basis of expected income from this source, providing significant cash flow before an election. Commercial lending of this nature is generally not available to non-major party candidates due to the higher levels of uncertainty around the primary vote they may achieve. This type of funding favours incumbents and significantly disadvantages independents.

The proposal to significantly increase per vote is flawed, and expensive. When combined with other new courses of public funding for incumbents, noted below, the total additional cost to taxpayers per election cycle is estimated at $60 million per election.

Providing further funding to incumbent MPs and Senators is a payment for Administrative Funding set at $7,500 per quarter for MPs and $3,750 for Senators. In total this will cost taxpayers $17 million per election cycle. While the legislation will increase compliance costs for members of parliament, the law specifically allows for some of this money can be spent on electoral expenditure and not count towards the spending cap noted above. For example, candidate and staff travel, establishing a

campaign office and printing how to vote cards can all be paid for from Administrative Funding and not count towards the candidates spending cap. All money spent on travel, offices and printing by independent candidates challenging for the seat, counts towards their expenditure cap.

The entire public funding scheme that has been established under this new legislation shifts the burden of funding election campaigns for major parties on to the Australian taxpayer, making it more difficult for independents and minor parties to compete at the same time as the Australian public are seeking greater diversity in parliament.

Truth in political advertising

Recommendation:

- **Legislate truth in political advertising**

'There is currently no legal requirement for the content of political advertisements to be factually correct' – Parliamentary Education Office

It remains perfectly legal to lie in political advertising in Australian federal elections. Only two jurisdictions prohibit lying in election advertising in their elections – South Australia since 1985 and the ACT since 2020.

The World Economic Forum's 2024 Global Risk Report ranked mis- and dis-information as the most significant threat facing the world in the short term. It is unclear why, as a parliament, we should not take the obvious step of at least holding ourselves to a higher standard and legislating truth in political advertising. We have legislated that every other sector of society must be truthful in their advertising but continue to fail to hold ourselves to the same standard.

The rise in the use of artificial intelligence and the increasingly realistic deepfake videos that can be produced only increase the urgency for action to be taken to ensure truth in political advertising.

I believe that politics should be about ideas and about people. That's why I am in favour of attempting to stop outright lies being part of our political system. Campaigning against someone's voting record or things they have publicly said is part of holding people to account; smearing political opponents with lies is not.

Simultaneous to the introduction of the electoral reforms described above, the Government introduced a bill (the *Electoral Legislation Amendment (Electoral Communications) Bill 2024*) to establish a truth in political advertising regime. It is extremely disappointing that this bill was quietly deprioritised and fell off the legislative agenda at the end of the 47th Parliament.

On 30 July 2025, I introduced this exact bill into the Senate - . Zali Steggall MP has also introduced the bill into the House of Representatives. We did this because we were frustrated that the Government had not engaged on the issue of truth in political advertising.

Regulating truth in political advertising will always be a challenging balancing exercise. We must ensure that misinformation does not undermine the integrity of our elections whilst continuing to uphold the freedom of political communication. The example set in the ACT and South Australia demonstrates that this is possible. I fully support efforts to strike that same balance at the Federal level and improve the quality of democracy in Australia.

Increased representation for the ACT and the NT

Recommendation:

- **Legislate to establish a nexus between the number of Senators from the States and the number of Senators from the Territories, whereby Territories would have as close to half the number of Senators and States as possible, increasing the current number of ACT and NT Senators to six immediately and increasing in-line with future increases in State's representation.**

ACT and the Northern Territory are not fairly represented in the Senate

Both the ACT and Northern Territory have experienced significant population growth - 159 per cent and 378 per cent respectively - since they were granted two senators each in 1974. During this period the number of senators from each State has increased once, in 1984, from 10 to 12, while the number of senators representing the two Territories remain unchanged.

Australia applies the 'one vote, one value' principle equitably in the House of Representatives with the exception of Tasmania which is constitutionally guaranteed five lower house seats and to a much lesser degree the Northern Territory which is guaranteed two seats to reflect its size and the dispersed nature of its population.

The 'one vote, one value' principle does not apply to the Senate. The Senate was devised as the States house, with the Constitution guaranteeing all Original States the same number of Senators to ensure the voices of smaller States were heard. The thinking behind this decision was partially to ensure that small jurisdictions are not overridden by larger states.

The absence of this democratic protection has played out with negative consequences. Until 2022, the ACT and the NT were prevented from legislating voluntary assisted dying legislation due to an act of the Federal Parliament, the '*Andrews Bill*'. Had the jurisdictions received fairer representation in the Senate, their territory rights may not have been overridden by the Federal Parliament.

Fair representation, proportional to the states

Whereas the number of Senators for the Original States was set in the Constitution and increases are made in unison, no provision was made for the Territories which did not exist at the time of drafting. However, the Constitution (s.122) gives the Parliament the power to make laws, including the levels of representation, on terms that they see fit, but offers no further guidance on what an appropriate level of representation would be.

Rather than considering what baseline level of representation for the Territories should be in comparison to the existing small States, a political decision was made in 1974 granting the two major Territories two Senators each. The number of Senators had no real basis but was a political decision that effectively gave both major parties two additional Senators (one from each Territory). While this change effectively ensured the two Territories were represented in each party room, but not in anywhere near the levels of other small jurisdictions.

Section 24 of the Constitution stipulates that there should be twice as many members of the house as senators (from the States); the so-called 'Nexus Provision'. Rather than Territories having to fight to ensure they are appropriately represented in the Senate, I propose to establish a nexus provision between number of Senators from the States and the number of Senators from the Territories.

Currently our voice is worth 1/6th of that of the States in the Senate. I believe that the parliament should legislate, during this term, establishing a nexus between the number of senators from the States and Territories, so that representation from the ACT and NT in the Senate is as close to half as possible. Given the current number of Senators in each State, this would see the ACT and the NT each have 6 Senators.

As Territory Senators are not included in the nexus provisions under s.24 of the Constitution, changing the number of Territory Senators has no impact on the number of House of Representatives members.

Increasing the number of Senators in the Territories provides greater opportunity for a more diverse representation, better reflecting the views of the people.

The key features of the proposed increase include:

- **Six Senators for both ACT and NT**
    - Both Territories should be treated equally, both are small and arguments about a baseline level of representation are applicable to both
- **Terms increase to six years in line with States**
    - Three Senators would be elected at half-Senate elections
- **Terms commence on 1 July following the election in line with States**
    - This allows for a cohort of new Senators to commence together, making the transition into Parliament easier rather than the current situation where new Territory Senators enter an already sitting Senate on their own
    - This is particularly helpful for Independent / micro-party Senators who cannot rely on colleagues or party machinery for support

As well as representing a fair, base level of representation for the Territories, and establishing a process to increase the number of senators in-line with increases in State's representation, additional Senators in the ACT and NT will ensure better representation for remote communities and external territories, which are currently poorly engaged in the political process as evidenced by low voter enrolment rates.

On 20 November 2024, I introduced the *Electoral Legislation Amendment (Fair Territory Representation) Bill 2024*, which has the effect of making the above changes. I have also worked hard to secure Senate crossbench support for the change, including from the Greens. This means that the Parliament could pass this amendment tomorrow if Labor decided to follow through on the commitment to fair territory representation contained in its policy platform.

ACT Senators also represent the people of Norfolk Island and Jervis Bay. Whilst Jervis Bay is relatively easy to travel to, Norfolk Island takes a day in travel in both directions. Ensuring these people have access to their representatives and can participate in the democratic process is important. Having additional Senators in the ACT provides better representation to the people of Norfolk Island who have been largely forgotten in the past but are keen to engage with their elected representatives. The increased capacity to visit remote communities is possibly even more important in the NT where voter enrolment rates remain below the national average.

Logistics around polling booths

Recommendation:

- **Polling places should not be located within 200 metres of a member of the electorate office of a parliamentarian, or a candidate's campaign office. If this is not possible, the AEC should devise plans to ensure that voters are not queueing outside an electorate of campaign office while waiting to vote.**

As noted, I have nothing but great appreciation for the way the professional manner that the AEC conducts elections across the country. However, in the 2025 election one issue did arise that I think the AEC needs to address and that is the location of polling places and how queues of voters are managed.

I appreciate finding suitable places for polling places is difficult, especially with the date of the election not known in advance, but the location of members of parliament electorate offices and candidate campaign offices are well known in advance. Locating a polling place, particularly a pre-poll booth that is open for two weeks prior to the election gives that candidate free advertising.

The main pre-poll location in the electorate of Bean was very close to the sitting member for Bean's electorate office. The queue for people waiting to vote regularly had people standing outside the office which gave them significant free publicity. The result in that contest was incredibly close, and while I am not suggesting that the way the prepoll voters were organised affected the outcome, any suggestion that it may have could have been avoided by being aware of the location of the office and finding a different place for the prepoll booth, or at a minimum finding a different way for people to queue to avoid them standing in front the electorate office while waiting to vote.

Data harvesting

Recommendation:

- **Amend the *Commonwealth Electoral Act 1918* to prohibit political parties and candidates from distributing or collecting postal vote application forms, ensuring that only AEC-produced forms can be used and that applications are submitted directly by voters to the AEC.**

Postal voting is an increasingly important part of federal elections. In 2022, more than one in seven Australians voted by post. But with that growth has come a deeply concerning practice: Labor, the Liberals and the Nationals using postal vote application forms as a mechanism to harvest voters' personal data.

These "postal vote programs" typically involve parties sending voters a postal vote application form together with a how-to-vote card, inviting voters to return the completed application to the party for processing. The voter often believes they are dealing with the AEC, when in fact their personal information is being collected, stored, and used by a political party. In some cases the forms are not even the official AEC version but a reproduced copy designed to look official, amplifying confusion and eroding trust.

This is not a neutral administrative process, it is a sophisticated data-gathering exercise. It gives large, well-resourced parties a significant advantage, allowing them to track when voters receive their ballot papers, target them with tailored messaging at key moments, and store their personal data for future campaigns. Smaller parties, independents and micro-parties cannot compete with these data-harvesting operations. More importantly, voters have never meaningfully consented to this use of their personal information.

The AEC has been clear about the risks. It has warned that the distribution and collection of postal vote applications by parties creates "eligibility confusion and privacy concerns" and has noted the use of colour, design and wording that could mislead voters into believing communication is from the AEC. Despite these warnings, the practice continues because the law currently permits it.

This practice undermines the independence of the postal voting process and weakens public trust in our elections. Voters are entitled to deal directly with the AEC when applying for a postal vote, confident that their personal information is being handled by an impartial electoral authority—not a political party seeking campaign advantage.

Reform is urgently needed. The *Commonwealth Electoral Amendment (Protecting Voters) Bill 2025*, introduced by Kate Chaney MP, provides a clear and sensible model. It would ensure that only the AEC-produced postal vote application form can be used and that completed forms must be submitted directly to the AEC by the voter. The reforms have no financial impact and do not infringe the implied freedom of political communication. What they do is restore integrity, fairness and transparency to a critical part of our democratic process.

Banning data harvesting through sham postal vote forms is a simple, principled reform. It protects voters' privacy, strengthens trust in our electoral system, and ensures that no political party can misuse the postal vote process for its own benefit.

Public servants volunteering in elections

Recommendation:

- **The Public Service Commission issue guidance to all Heads of Departments at least six months before the latest date a Federal election can be held, stressing that public servants are allowed to volunteer for political parties and independent campaigns and providing concrete examples to inform decision-making**

Our democracy is stronger when Australians volunteer their time to campaign for political parties and independents. Volunteers are critical to raising the profile of candidates through working on stalls in high foot traffic areas, letterboxing neighbourhoods, door knocking constituents, making phone calls and just wearing campaigns t-shirts to the local shops. This work takes place long before an election is called.

In the ACT, a high proportion of residents working as public servants. Many are concerned that volunteering for a political campaign, even in a relatively low-profile capacity with no relationship to their position as a public servant, can limit their careers. My 2025 campaign had at least five volunteers who were told they could not volunteer for the campaign in any manner at all and had to

withdraw from our volunteer team. On each occasion, this was a misinterpretation of requirements placed on the public service to ensure the public service is apolitical.

The Public Service Commissioner and the Secretary of the Department of Prime Minister and Cabinet sent an open letter to all public servants on 28 March 2025 to remind them to 'remain professional, apolitical, impartial and ethical in the course of their duties'.

Public servants receiving this advice when the election is called had a chilling effect on democratic engagement. Public servants should be advised at least six months out from the latest date an election can be held that they are entitled as private citizens to engage in political activity provided there is no direct conflict of interest with their regular work.

The Public Service Commissioner sent a subsequent email to APS Agency Heads on 15 April that contained excellent, practical advice such as:

'Where employees wish to undertake volunteer campaign activities outside work hours such as

- *phone banking*
- *doorknocking*
- *manning stalls at public events*
- *handing out 'how to vote cards' in public places, or*
- *putting up campaign signage (including displaying such signage at their home),*

it is not reasonable to expect or require employees to discuss with their managers or otherwise notify their agencies before they do so. These activities, when conducted outside work hours and where employees do not wear anything that identifies them as an APS employee, are low risk and unlikely to raise conflict concerns.'

This advice should be sent to all public servants well before an election is called.

The culture of fear must be changed. The above information should be sent directly to all public servants well in advance of an election to allow them to make informed choices about whether to volunteer for a campaign without having to consider risks to their careers.

Communications with incarcerated people

Recommendation:

- **Review communication methods used to inform incarcerated people**

I believe it is imperative on us to ensure that every eligible voter is easily able to vote. I understand that people being held in the ACT prison system have raised that they were unaware of how to vote as communication was only by email. Considering the context of high illiteracy levels and that many do not have easy access to computers I am concerned that this may have led some voters to be unable to cast a vote at the last election.

I thank you for considering my submission and wish the Committee all the best with their work.

[redacted]

Senator David Pocock